



महाराष्ट्र MAHARASHTRA

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प्रधान मुद्रांक कार्यालय, मुंबई
प. स. वि. क्र. ८००००२०
24 JAN 2017
सक्षम अधिकारी 3

श्री. राजू की पीटले

THIS STAMP PAPER FORMS AN INTEGRAL PART OF THE AMENDMENT TO INVESTMENT AGREEMENT DATED MARCH 10, 2017 ENTERED BY AND AMONG GLASS WALL SYSTEMS (INDIA) PRIVATE LIMITED, INDIA BUSINESS EXCELLENCE FUND II, INDIA BUSINESS EXCELLENCE FUND IIA, MR. JAWAHAR HEMRAJANI, MR. KAMLESH CHOUDHARI AND THE BALANCE SHAREHOLDERS.

Company Kee	IBEF II 0	IBEF IIA 110	Jawahar Kee	Kamlesh Kamlesh	Balance Shareholders Kamlesh
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AMENDMENT TO INVESTMENT AGREEMENT

This **AMENDMENT TO INVESTMENT AGREEMENT** ("Amendment Agreement") is executed at Mumbai on this 10th day of March, 2017 ("Effective Date"):

BY AND AMONG:

- (1) **GLASS WALL SYSTEMS (INDIA) PVT. LTD.**, a private limited company incorporated in India under the provisions of the Companies Act, 1956, and having its registered office at 503/504, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound, N. M. Joshi Marg, Lower Parel (East), Mumbai-400013, (hereinafter referred to as "**Company**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns);

AND

- (2) **IL&FS TRUST COMPANY LIMITED**, a public company incorporated under the provisions of the Companies Act, 1956 and having its registered office at the IL&FS Financial Centre, C-22, G Block, Bandra Kurla Complex, Bandra (East), Mumbai 400051, India acting in its capacity as trustee of **INDIA BUSINESS EXCELLENCE FUND II ("IBEF II")**, a unit scheme of Business Excellence Trust II, a trust created under the Indian Trust Act, 1882, acting through its investment manager, MOPE Investment Advisors (India) Private Limited, a company registered in India under the Companies Act, 1956 having its registered office at 8 Palm Spring Centre, 2nd Floor, Palm Court Complex, New Link Road, Malad (West), Mumbai 400064 (hereinafter referred to as "**IL&FS**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns);

AND

- (3) **INDIA BUSINESS EXCELLENCE FUND - IIA**, a public limited company incorporated under the laws of Mauritius and having its office at Suite 304, Third Floor, NG Tower, Cyber City, Ebene, Mauritius (hereinafter referred to as "**IBEF IIA**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns)

AND

- (4) **MR. JAWAHAR HEMRAJANI**, an Indian citizen, aged 51 years, holding PAN AAAPH4147F and currently residing at B - 2701 / 2702, Tharwani Heights, Sector 18, Sanpada, Navi Mumbai - 400705 (hereinafter referred to as "**Jawahar**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include his heirs, executors, administrators and permitted assigns);

AND

- (5) **MR. KAMLESH CHOUDHARI**, an Indian citizen, aged 40 years, holding PAN AABPC0207C and currently residing at B / 2504, Avalon Heights, Hiranandani Complex, Near Lakecastle Building, Powai IT, Mumbai-400076 (hereinafter referred to as "**Kamlesh**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include his heirs, executors, administrators and permitted assigns);

AND

- (6) **The Persons listed in SCHEDULE 1**, represented by their constituted attorney, Jawahar and/or Kamlesh (hereinafter collectively referred to as the "**Balance Shareholders**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include their respective heirs, executors, administrators and permitted assigns);

 Company	 IBEF II	 IBEF IIA	 Jawahar	 Kamlesh	 Balance Shareholders
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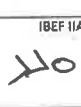
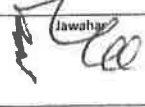
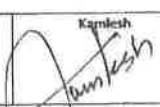
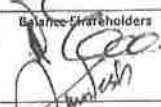
Hereinafter, (a) Jawahar and Kamlesh shall be collectively referred to as "**Promoters**" and individually as "**Promoter**"; (b) IBEF II and IBEF IIA shall be collectively referred to as "**Investors**" and individually as "**Investor**"; (c) the Balance Shareholders shall be collectively referred to as "**Confirming Parties**" and individually as "**Confirming Party**"; and (d) the Investor, the Company, the Promoters and the Confirming Parties shall be collectively referred to as "**Parties**" and individually as the "**Party**".

WHEREAS:

- A. Pursuant to an investment agreement (the "**Agreement**") dated June 9, 2014, the Investors had subscribed to 8,00,000 cumulative compulsorily convertible participating preference shares of series 1 having a face value of Rs. 10 (Rupees Ten only) each (CCPS Series 1) and 47,00,000 cumulative compulsorily convertible participating preference shares of series 2 having a face value of Rs. 10 (Rupees Ten only) each ("CCPS Series 2") of the Company, (CCPS Series 1 and CCPS Series 2 together referred to as "CCPS"). The Agreement set out, among other things, the terms of the issue of CCPS, the methods for determining the applicable conversion ratio, and the tenure of the CCPS. The existing shareholding pattern of the Company is given in Schedule 2 to this Amendment Agreement.
- B. The Parties are now desirous of amending the terms of the CCPS, more specifically the conversion ratio and the terms of differential rights of equity shares issued as a result of the conversion.
- C. Pursuant to the above, the Parties are desirous of entering into this Amendment Agreement to govern the terms and conditions relating to CCPS and the resulting equity shares and in order to define their mutual rights and obligations and set out the terms and conditions governing their relationship.

IN CONSIDERATION OF THE MUTUAL COVENANTS AND AGREEMENTS SET FORTH HEREIN AND FOR OTHER GOOD AND VALUABLE CONSIDERATION, THE RECEIPT AND SUFFICIENCY OF WHICH IS HEREBY ACKNOWLEDGED, THE PARTIES HERETO AGREE AS FOLLOWS:

1. The Agreement shall stand amended as under:
 - i. The Investors will have the option to convert the CCPS which are currently held by them into Class-B Equity Shares with differential rights as to dividend. The Investors holding this class of equity shares will be entitled to a payment of 2% coupon per annum on the subscription price, and are also entitled to participate in ordinary dividend from the date of conversion, till the date falling on the 10th anniversary of the Closing Date or till such time as the Investor may opt for, whichever is earlier.
 - ii. The CCPS can be converted to Class-B Equity Shares at any time at the option of the Investor. However, the conversion shall not take place at a price lower than the fair market value determined at the time of issuance of the CCPS. The CCPS shall however be compulsorily convertible to Class-B Equity Shares at the end of 10 (ten) years from the Closing Date at the applicable conversion ratio as given under. The shareholding pattern of the Company post-conversion is given in Schedule 3 to this Amendment Agreement.

 Company	 IBEF II	 IBEF IIA	 Jawahar	 Kamlesh	 Balance Shareholders
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Conversion ratio - The CCPS shall be convertible into such number of Series B Equity Shares as under:

CCPS Series	No of CCPS issued	No. of Class-B Equity Shares issuable on conversion
CCPS Series 1	8,00,000	6,47,941
CCPS Series 2	47,00,000	38,06,654

- iii. The differential rights accruing to the Investors under the Class-B Equity Shares shall automatically and ipso facto fall away either (i) upon the Company getting listed on a recognised stock exchange, at any time or (ii) at the end of 10 (ten) years from the Closing Date or at any time at the option of the Investor, whichever is earlier, and the Class-B Equity Shares shall be treated *pari passu* with Equity Shares. The shareholding, post fall away of rights is reflected in **Schedule 4** to this Amendment Agreement.
- iv. Any reference to Equity Shares on conversion from CCPS shall be construed as conversion of CCPS to Class-B Equity Shares.
- v. Nothing contained in this Amendment Agreement shall take away the rights, or affect the remedies available to the Investors under the Agreement. All the provisions of the Agreement shall apply *mutatis mutandis* to holders of Class-B Equity Shares, as they apply/ied to holders of CCPS. The rights of the Investors which have been granted pursuant to the Agreement as holders of CCPS shall apply *mutatis mutandis* to holders of Class-B Equity Shares also.
- vi. Additionally, certain provisions of the Agreement stand amended as under:
- a. In Clause 1.1 under Definitions, the following definition shall be inserted:
- "Class-B Equity Shares"** shall mean Class-B fully paid up equity shares of the Company, each having a face value of Rs.10 (Rupees Ten Only) each and each carrying differential rights as to dividend, the rights in respect of which are contained in Schedule 10 and 11.
- b. In Schedule 10 and 11, Clause 4, sub-clauses (a), (b) and (c) shall be substituted for the following:
- 4. Conversion**
- (a) The CCPS shall be convertible into such number of Class-B Equity Shares as set out hereunder.
- (b) At the end of 10 (ten) years from the Closing Date or at any time the option of the Investor, whichever is earlier, the outstanding CCPS shall be compulsorily convertible into Class-B Equity Shares in accordance with the applicable conversion ratio set out below, provided however that the Investor shall have the right but not the obligation to convert all of its outstanding CCPS into Class-B Equity Shares from time to time in accordance with the applicable conversion ratio set out in below. In the event the Investor opts to convert the CCPS into Class-B Equity Shares, the differential rights accruing to the Class-B Equity Shares will fall away at the end of 10 (ten) years from the Closing Date or at any time at the option of the Investor or the Company getting listed on a recognised stock exchange at any time, whichever is earlier, and they shall be treated on a *pari passu* basis with Equity Shares.

Company	IBEF II	IBEF IIA	Jayashree	Kamlesh	Balance Shareholders

(c) The number of Class-B Equity Shares into which the CCPS will convert will be determined as under:

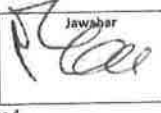
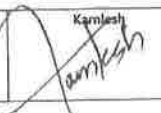
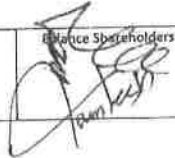
i. For CCPS Series 1, in Schedule 10:

CCPS Series	No. of CCPS issued	CCPS Series 1 Conversion to Class-B Equity Shares
CCPS Series 1	8,00,000	6,47,941

ii. For CCPS Series 2, in Schedule 11:

CCPS Series	No. of CCPS issued	CCPS Series 2 Conversion to Class-B Equity Shares
CCPS Series 2	47,00,000	38,06,654

2. The Agreement stands amended to the extent of and to the effect as mentioned hereinabove, and shall be construed accordingly. Save as modified above, the provisions of the Agreement shall remain unchanged and the Agreement as modified herein shall continue to be in full force and effect.
3. The Agreement shall be amended with effect on and from the Effective Date.
4. Clauses 19 (Notices), 24.7 (Reservation of Rights), 24.8 (Cumulative Rights), 24.9 (Partial Invalidity), 24.10 (Amendments), 24.11 (Further Assurances), 24.12 (No Assignment), 24.14 (Relationship), 24.16 (Governing Law and Dispute Resolution), 24.18 (Costs), 24.19 (Public Announcements), 24.20 (Execution in Counterparts), 24.21 (Authorisation) in the Agreement shall apply mutatis mutandis to this Amendment Agreement.
5. The capitalized terms used herein but not defined herein shall have the same meaning as given in the Agreement.

 Company	 IBEF II	 IBEF IIA	 Jawahar	 Kamlesh	 Balance Shareholders
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SCHEDULE 1: BALANCE SHAREHOLDERS

SL. NO.	NAME OF THE BALANCE SHAREHOLDER	CONSTITUTION	ADDRESS
1.	Mrs. Sunita Choudhari	Individual	B / 2504, Avalon Heights, Hiranandani Complex, Near Lakecastle Building, Powai IIT, Mumbai-400076
2.	Mrs. Vinne Hemrajani	Individual	B – 2701 / 2702, Tharwani Heights, Sector 18, Sanpada, Navi Mumbai – 400705
3.	Mr. Eshan Hemrajani	Individual	B – 2701 / 2702, Tharwani Heights, Sector 18, Sanpada, Navi Mumbai – 400705
4.	Mr. Amit Hemrajani	Individual	B – 2701 / 2702, Tharwani Heights, Sector 18, Sanpada, Navi Mumbai – 400705

SCHEDULE 2: EXISTING SHAREHOLDING PATTERN

S.No	Name of the shareholder	No. of equity shares held	% of Equity Holding	No. of CCPS held	No. of Class-B Equity Shares held
1	Jawahar H. Hemrajani	64,97,217	43.36	0	0
2	Kamlesh A. Choudhari	64,97,217	43.36	0	0
3	Vinne J. Hemrajani	73,871	0.49	0	0
4	Sunita K. Choudhari	1,84,676	1.23	0	0
5	Eshan J. Hemrajani	57,671	0.38	0	0
6	Amit J. Hemrajani	53,134	0.35	0	0
7	IL & Fs Trust Company Ltd (Trustee of Business Excellence Trust II - India Business Excellence Fund II)	10,52,904	7.03	8,00,000 ¹	0
8	India Business Excellence Fund – IIA	5,66,950	3.78	47,00,000 ²	0
		1,49,83,640	100	55,00,000	0

¹ CCPS Series 1

² CCPS Series 2

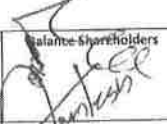
Company	IBEF II	IBEF IIA	Jawahar	Kamlesh	Balance Shareholders

SCHEDULE 3: SHAREHOLDING PATTERN POST CONVERSION

S.No	Name of the shareholder	No. of equity shares held	% of Equity Holding	No. of CCPS held	No. of Class-B Equity Shares held
1	Jawahar H. Hemrajani	64,97,217	43.36	0	0
2	Kamlesh A. Choudhari	64,97,217	43.36	0	0
3	Vinne J. Hemrajani	73,871	0.49	0	0
4	Sunita K. Choudhari	1,84,676	1.23	0	0
5	Eshan J. Hemrajani	57,671	0.38	0	0
6	Amit J. Hemrajani	53,134	0.35	0	0
7	IL & Fs Trust Company Ltd (Trustee of Business Excellence Trust II - India Business Excellence Fund II)	10,52,904	7.03	0	6,47,941
8	India Business Excellence Fund – IIA	5,66,950	3.78	0	38,06,654
		1,49,83,640	100	0	44,54,595

SCHEDULE 4: SHAREHOLDING PATTERN POST FALL AWAY OF DIFFERENTIAL RIGHTS TO DIVIDEND

S.No	Name of the shareholder	No. of equity shares held	% of Equity Holding
1	Jawahar H. Hemrajani	64,97,217	33.42%
2	Kamlesh A. Choudhari	64,97,217	33.42%
3	Vinne J. Hemrajani	73,871	0.38%
4	Sunita K. Choudhari	1,84,676	0.95%
5	Eshan J. Hemrajani	57,671	0.30%
6	Amit J. Hemrajani	53,134	0.27%
7	IL & Fs Trust Company Ltd (Trustee of Business Excellence Trust II - India Business Excellence Fund II)	17,00,845	8.75%
8	India Business Excellence Fund – IIA	43,73,604	22.50%
	Total	1,94,38,235	100

					
Company	IBEF II	IBEF IIA	Jawahar	Kamlesh	Balance Shareholders

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SET AND SUBSCRIBED THEIR
RESPECTIVE HANDS TO THESE PRESENTS ON THE DAY, MONTH AND YEAR HEREINABOVE
WRITTEN:

SIGNED
BY THE WITHINNAMED "IL&FS"

BY THE HAND OF

Mr.

Designation:



SIGNED
BY THE WITHINNAMED "IBEF-IIA"
INDIA BUSINESS EXCELLENCE FUND - IIA
BY THE HAND OF
Mr. Shafiq - Ur - Rahman Sayfoo
Designation: Director



SIGNED
BY THE WITHINNAMED "Company"
GLASS WALL SYSTEMS (INDIA) PRIVATE LIMITED
BY THE HAND OF
Mr.
Designation:



SIGNED
BY THE WITHINNAMED "Jawahar"



SIGNED
BY THE WITHINNAMED "Kamlesh"



SIGNED
ON BEHALF OF THE WITHINNAMED "BALANCE
SHAREHOLDERS" AS NAMED IN ITEM 1 OF SCHEDULE
1 BY THEIR CONSTITUTED ATTORNEY MR. KAMLESH
CHODHARI
SIGNED
ON BEHALF OF THE WITHINNAMED "BALANCE
SHAREHOLDERS" AS NAMED IN ITEM 2 TO 4 OF
SCHEDULE 1 BY THEIR CONSTITUTED ATTORNEY MR.
JAWAHAR HEMRAJANI



Company	IBEF II	IBEF IIA	Jawahar	Kamlesh	Balance Shareholders